

2014 SCC OnLine All 12682

(BEFORE KRISHNA MURARI AND ASHWANI KUMAR MISHRA, JJ.)

Ram Prakash Yadav Petitioner

v.

State of U.P. & 3 Others Respondents

Counsel for Petitioner:- B.N. Singh, Santosh Singh

Counsel for Respondent:- C.S.C., Baleshwar Chaturvedi

Writ - C No. - 37237 of 2014

Decided on August 4, 2014

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Heard Shri B.N. Singh, learned counsel for the petitioner, learned Standing Counsel for respondent nos. 1 and 3 and Shri Baleshwar Chaturvedi, who has accepted notices on behalf of respondent no. 2.

On 22.07.2014, the respondents were required to seek instructions as to whether any provisional assessment was made against the petitioner; whether provisional assessment was served to the petitioner and if so, the copy of the notice was served; whether petitioner filed objections and same were decided by the concern authority; and, in case, the objections were decided, whether final assessment was sent to the petitioner before issuing notice and initiating recovery.

When the matter has been called out, Shri Baleshwar Chaturvedi, on the basis of the instructions, states that a provisional statement was made on 28.05.2011 and was sent by post to the petitioner. Since he did not file any objection/reply, the same was treated as final assessment and a recovery certificate was issued.

The copy of the instructions are taken on record.

This Court in *Ashok Kumar v. State of U.P.*, 2008 (6) ADJ 660 (DB) from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

In the present case, we find that provisional assessment does not give the basis on which petitioner was assessed to pay Rs. 2,15,654/-. The assessing authority has not recorded its satisfaction that the petitioner has committed theft of electricity. In the instructions, dated

02.08.2014, the concerned Executive Engineer has informed the counsel for respondents that provisional assessment was sent vide notice No. 802 dated 28.05.2011 by post. The provisional assessment was sent by registered post and further there is nothing to show that it was received by petitioner.

In view of the fact that the instructions do not contain any positive reply with regard to method of service, we are of the opinion that petitioner was not afforded adequate opportunity as provided in para 6.8(b) of U.P. Electricity Code, 2005 to give reply and object to the provisional assessment.

The writ petition is allowed. The impugned demand notice dated 26.06.2014 and all consequential proceedings thereto are hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve it upon the petitioner. The final assessment order will be made after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in *Ashok Kumar* (supra).

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